

IN THE COURT OF THE XI ADDL. CITY CIVIL & SESSIONS JUDGE,
BENGALURU CITY (CCH-8)

PRESENT

SRI. B.DASARATHA, B.A., LL.B.,
XI Addl. City Civil & Sessions Judge,
Bengaluru City.

DATED THIS THE 2nd DAY OF APRIL, 2025

Ex. No.2502/2023

Decree-holders:

Sri. B.M. Rajashekar,

Since dead by his LRs:

1(a). **Dr. B.R.Niranjan,**
S/o. Sri.B.M.Rajashekar,
Aged about 51 years.

1(b). **Smt. B.R.Nanda Jyothi,**
D/o. B.M.Rajashekar,
Aged about 40 years.

1(c). **Smt. Gayathri,**
D/o. Sri. B.M.Rajashekar,
Aged about 40 Years.

All are residents of No.108-D,
29th Cross, 7th Block,
Jayanagar, Bengaluru.

(By Adv. Sri. H.M.Muralidhar)

Vs.

Judgment-debtors:

1. **Sri. Lakkanna,**
Hindu, Major,
M.L.A. Subramanyanagar,
Rajajinagara,
Bangalore - 560 010.
2. **Sri. Valluraiah,**
Hindu, Major,
Bank Employee, 17th Cross,
Manjunathanagar,
Bangalore - 560 010.
3. **Smt. Gowramma,**
W/o. G.Rama Krishna,
No.241/A, 1st Block,
Manjunathanagar,
Bangalore - 560 010.

(JDR No.1 & 2 – Absent
JDR No.3 by Adv. Sri.Pradeep Kumar R.H.)

Objector:

Sri. Umesh H.
S/o. Hanumanthappa,
Aged about 48 years,
288/A, 9th Main Road,
3rd Cross, 3rd Stage,
Manjunathanagar,
Bengaluru – 10.

(By Adv. Sri. Syed Mathan Ulla)

ORDERS ON I.A. No.2

This IA No.2 is filed by the Objector, under Order XXI Rules 97 to 101 r/w Section 151 of CPC, seeking to resist the execution of the decree obtained in O.S.No.5979/1992.

2. The Objector has sworn to an affidavit in support of the I.A. The objector claims possession of the shop premises located at property No.314/A, which is central to this dispute. Objector asserts that, he has been in possession of this property for two decades and that his shop is his sole source of income. Notably, he contends that, he was not made a party to the original suit and that the decree-holders and judgment-debtors colluded to obtain a decree affecting his rights without due process.

2(a). The objector's application rests on several key assertions; that the objector is a long-time possessor of the property in question and has not been evicted; that the execution of the decree would cause irreparable harm, as it threatens his livelihood; that the decree was obtained collusively, infringing his rights and that he seeks an enquiry into the title and possession concerning the property, invoking provisions of CPC that allow judicial intervention in cases of resistance to execution. On these grounds, prays to allow the I.A.

3. The decree-holders have filed the following objections to the I.A. The brief averments of objection statement is as follows:

The original decree, issued in O.S.No.5979/1992, has attained finality after the dismissal of an appeal and they are entitled to execute this decree. The objector, being a third party and not part of the original suit, lacks standing to raise objections regarding title or execution. The issues of ownership

and possession cannot be revisited in execution proceedings, and any delays are unwarranted. The relevant provisions of the CPC, particularly Order XXI, establish the framework for addressing such objections and executing decrees. Order XXI Rule 97 allows the decree-holder to seek assistance from the court in case of resistance by any person. On these grounds, prays for dismissal of I.A.

4. Arguments of Objector is not addressed. Arguments of decree-holders is heard

5. Now, the points that would arise for my consideration are :-

1. Whether Objector possesses the legal right to oppose the decree execution given his non-participation in the original suit, lack of evidence for his claims and whether execution proceedings can validly address his independent rights?

2. What order?

6. My findings on the above points are as under:-

Point No.1: In the negative.

Point No.2: As per final order below for the following;

REASONS

7. **Point No.1:** - Order XXI Rule 101 stipulates that questions regarding ownership should be resolved by the court

hearing the execution. The case law cited, particularly from **AIR 1998 SC 1754 and ILR 2005 KAR 1001**, highlights the court's limitations in executing decrees without addressing collateral disputes unless the obstructing party has a legal basis to resist execution.

8. The decree-holders possess a legally valid decree that is enforceable against the judgment debtors. The status of the decree is confirmed by prior legal decisions and has not been challenged on grounds that would nullify its enforcement.

9. The objector's claim of being a long-term possessor introduces factual questions that typically require judicial hearings. However, the objector has not demonstrated any legal entitlement as a party to the original decree, making his claims of collusion speculative. His status as a third party complicates his position, without evidence of an unbroken chain of title or right to possess derived from a legitimate source. Therefore, Objector's application under Order XXI, especially without corresponding documentation proving his legal cause, stands as an obstruction to the decree-holders' right to execute the decree.

10. The observations from the Hon'ble Supreme Court in **Civil Appeal No.4649/2022**, dated 06.07.2022, highlighted significant insights into the rights of parties involved in execution proceedings is as follows:-

“A person who purchases property during the pendency of litigation (pendente lite purchaser) does not have

the right to obstruct the execution of a decree unless they have a legally recognized right to do so.

Order XXI Rule 102 explicitly prohibits objections from transferees of the judgment debtor if the transfer occurred after the suit was instituted.

Once objections raised under Order XXI Rule 58 CPC have been adjudicated and rejected, the same party cannot reassert those objections under Order XXI Rule 97 CPC. The suitable course for a subsequent purchaser or anyone asserting rights to the property after the objections have been dismissed is to file a separate suit to resolve their title.

If a person claims to have an independent right while in possession, the Executing Court will evaluate their claims under Rules 97-101 CPC.

A party wrongfully dispossessed by the decree-holder has the right to seek reinstatement under Order XXI Rule 99 CPC. However, this option is not available to a pendente lite transferee, as such transfers remain subordinate to the decree-holder's rights.

The decree-holder is authorized to execute the decree without interference from pendente lite purchasers. Any party in possession must substantiate their independent legal right to maintain possession. An Executing Court is not compelled to conduct an exhaustive trial if the objector's rights have been previously ruled upon. Individuals whose objections have been dismissed hold the option to pursue a separate suit to claim their title.

In this specific case, the appellant, who has been in physical possession of the property since 2004, was never dispossessed by the respondent trust in execution of the decree. Therefore, the appellant is not entitled to make an application under Rule 99, which deals with restoration of possession if dispossession occurs.

The Executing Court has mistakenly framed issues and allowed the appellant to lead evidence on objections under Order XXI Rule 97, which is beyond the scope of the rule.

Rule 97: It is mentioned that only the "decree holder" can file an application under Rule 97 in case of obstruction or resistance by any person. In this case, the appellant, a bona fide purchaser, is not the decree holder, and thus cannot invoke Rule 97.

Rule 99: The appellant, who has been in physical possession of the property since 2004, was never dispossessed by the respondent trust in execution of the decree. Therefore, the appellant is not entitled to make an application under Rule 99, which deals with restoration of possession if dispossession occurs.

*Rule 101: This rule provides that disputes relating to the right, title, or interest in the property can be raised through an application under Rule 97 or Rule 99. However, since the appellant is not entitled to file an application under these rules, Rule 101 does not apply in this case.

The Executing Court wrongly framed issues and allowed the appellant to lead evidence on objections under Order XXI

Rule 97, which was beyond the scope of the rule.

The appeal was dismissed, with directions to the Executing Court to decide the execution case expeditiously.

The judgment reinforces the principle that only the decree holder or a person directly affected by dispossession can invoke specific provisions under Order XXI of the CPC related to execution proceedings.”

11. Hence, in view of the above decision of the Hon’ble Supreme Court, the Objector who claims to be in possession cannot seek for holding enquiry regarding his obstructions. Hence, above Point No.1 is answered in the negative.

12. **Point No.2:-** In view of the above discussions, this court proceed to pass the following:-

ORDER

I.A.No.2 filed by Objector - Umesh H.
under Order XXI Rules 97 to 101 r/w Section
151 of CPC is hereby dismissed.

All parties are to bear their own costs.

(Dictated to the Stenographer Grade-I directly on computer, typed by her, the transcript thereof corrected and then pronounced by me, in the open court, this the 2nd day of April, 2025)

(B.DASARATHA)

XI ADDL. CITY CIVIL & SESSIONS JUDGE
BENGALURU CITY.